

5	Doe vs. Boys & Girls Club Of Central New Mexico 2022-01296308	Motion for Leave to File Cross Complaint The unopposed Motion for Leave to File a Cross-Complaint brought by Defendant Dominic Yannoni is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendant shall separately file and serve the proposed Cross-Complaint, within 10 days of this order. Defendant Dominic Yannoni seeks leave to file a Cross-Complaint against Boys & Girls Club of Central New Mexico, which seeks: (1) Implied Contractual Indemnity; (2) Equitable Indemnity; (3) Failure to Defend; (4) Declaratory Relief; and (5) Apportionment of Fault. (¶9 of Marchiondo Declaration and Exhibit A thereto.) The proposed Cross-Complaint specifically identifies the instant action and asserts the proposed Cross-Defendant shares liability for the injuries sustained by Plaintiff, to the extent those injuries arise from Plaintiff's negligence claims. (¶1, ¶7, ¶17-¶18, ¶23-¶24, ¶28 and ¶38 of Proposed Cross-Complaint [Exhibit A of Marchiondo Declaration.]) The Proposed Cross-Complaint additionally alleges a duty to defend, within this action. (<i>Id.</i> at ¶28.) "Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) "An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff." (<i>Id.</i> at p. 39.) Based on the above, the proposed pleading qualifies for leave pursuant to Code of Civil Procedure section 428.10, subdivision (b)(1). Additionally, as no prejudice has been shown, the Court finds that leave to plead serves the interest of justice. (Code Civ. Proc., § 428.50, subd. (c).) Defendant to give notice.
6	Espinoza vs. Nissan North America, Inc.	Motion to Compel Production Defendant Nissan North America, Inc.'s motion to compel the inspection of Plaintiff Gabriel Espinoza's vehicle is denied.